109	**Cunningham vs. FCA US, LLC.** **24-01431302**	Motion for Bifurcation Defendant FCA US, LLC (“Defendant”) moves for an order bifurcating trial with regard to plaintiffs Dana Lynn Cunningham and Cara Leigh Cunningham’s (“Plaintiffs”) claim for punitive damages, precluding Plaintiffs from introducing evidence of or otherwise referring to Defendant’s financial condition unless and until Plaintiffs prove a prima facie case of liability for punitive damages, pursuant to Civil Code section 3295(d). Section 3295(d) provides, in relevant part: “The court shall, on application of any defendant, preclude the admission of evidence of that defendant's profits or financial condition until after the trier of fact returns a verdict for plaintiff awarding actual damages and finds that a defendant is guilty of malice, oppression, or fraud in accordance with Section 3294.” “[I]n practice bifurcation under this section means that all evidence relating to the amount of punitive damages is to be offered in the second phase, while the determination whether the plaintiff is entitled to punitive damages (i.e., whether the defendant is guilty of malice, fraud or oppression) is decided in the first phase along with compensatory damages.” (Holdgrafer v. Unocal Corp. (2008) 160 Cal.App.4th 907, 919.) Pursuant to section 3295(d), Defendant’s Motion to Bifurcate is GRANTED. It is ORDERED that Plaintiffs shall be precluded from admitting evidence of Defendant’s financial condition in the first phase of trial and shall not introduce such evidence unless and until Plaintiffs have established a prima facie case of their entitlement to punitive damages. Moving party to give notice
110	**Konkimalla vs. Bose** **21-01221950**	Motion to Strike or Tax Costs

		Plaintiff Harikrishna Madanaraj ("Plaintiff") moves pursuant to Code of Civil Procedure sections 1032 and 1033.5 and California Rules of Court, rule 3.1700(b) to strike all costs on the grounds that the Court struck the provision awarding costs in its March 19, 2026 Order. Defendants SURBHI BOSE as special administrator, personal representative, and executor of the ESTATE OF SANTANU BOSE, an individual, SURBHI BOSE as Trustee of the Bose Family Trust dated April 17, 2019, BOSE CAPITAL MARKETS, LLC ("Defendants") oppose the motion. First, the Court notes that the motion to strike or tax costs was timely filed pursuant to California Rules of Court, rule 3.1700, which states that "[a]ny notice of motion to strike or to tax costs must be served and filed 15 days after service of the cost memorandum." (Cal. Rules of Court, rule 3.1700, subd. (b)(1).) Here, the Memorandum of Costs was filed and served on 03/20/2026. (ROA 223.) This Motion to Strike or Tax was filed and served on 04/06/2026. (ROA 233.) Next, Code of Civil Procedure section 1032 expressly states that "[e]xcept otherwise provided by statute, a prevailing party is entitled as a matter of right to recover costs in any action or proceeding." (Code Civ. Proc., § 1032, subd. (b).) Importantly, "absent statutory authority, the court has no discretion to deny costs to the prevailing party." (Vons Cos., Inc. v. Lyle Parks Jr., Inc. (2009) 177 Cal.App.4th 823, 832 [internal quotations omitted].) Plaintiff argues that Defendants are not entitled to costs because the Court struck the verbiage "Defendants, as the prevailing parties herein, shall have the ability to seek recovery of their costs and attorneys' fees against Plaintiff in accordance with California Rules of Court, Rules 3.1700 and 3.1702." In this judgment, the Court did not determine that Defendants are not entitled to

		recover costs – it just declined to order that Defendants were entitled to costs and attorney fees. The Court finds that Defendants are the prevailing party as summary judgment was granted in their favor on the causes of action Plaintiff asserted against them. Moreover, Plaintiff has not presented statutory authority establishing that Defendants are not entitled to recover costs. Given these conclusions, the Court finds that Defendants are entitled to recover costs pursuant to section 1032. Code of Civil Procedure section 1033.5(a) sets forth allowable costs. Code of Civil Procedure section 1033.5(b) sets forth the costs that are not allowable. “An item not specifically allowable under subdivision (a) nor prohibited under subdivision (b) may nevertheless be recoverable in the discretion of the court if ‘reasonably necessary to the conduct of the litigation rather than merely convenient or beneficial to its preparation.’” (Ladas v. California State Auto. Assn. (1993) 19 Cal.App.4th 761, 774.) “If the items appearing in a cost bill appear to be proper charges, the burden is on the party seeking to tax costs to show that they were not reasonable or necessary.” (Nelson v. Anderson (1999) 72 Cal.App.4th 111, as modified on denial of reh'g (June 14, 1999) [citing Ladas v. California State Auto. Assn. (1999) 19 Cal.App.4th 761, 774].) “On the other hand, if the items are properly objected to, they are put in issue and the burden of proof is on the party claiming them as costs.” (Ibid.) “The court’s first determination, therefore, is whether the statute expressly allows the particular item, and whether it appears proper on its face.” (Nelson v. Anderson (1999) 72 Cal.App.4th 111, as modified on denial of reh'g (June 14, 1999).) “If so, the burden is on

		the objecting party to show them to be unnecessary or unreasonable." (Ibid.) Here, Defendants seek the following costs: (1) $1,630 for filing and motion fees, (2) $150 for jury fees, (3) $2,165.35 for deposition costs, and (4) $353.53 for fees for electronic filing or service. Code of Civil Procedure section 1033.5(a)(1) expressly allows for "filing motion, and jury fees." (Code Civ. Proc., § 1033.5, subd. (a)(1).) The Court notes that while a jury trial did not take place, Defendants were still required to pay a nonrefundable fee for their jury demand and therefore a jury fee was a reasonably necessary costs of litigation. (Code Civ. Proc., § 631, subd. (b).) Section 1033.5(a)(3) expressly allows the prevailing party to recover costs related to "[t]aking video recording, and transcribing necessary depositions, including an original and one copy of those taken by the claimant and one copy of depositions taken by the party against whom costs are allowed, "[f]ees of a certified or registered interpreter for the deposition of a party or witness who does not proficiently speak or understand the English language, and "[t]ravel expenses to attend depositions." (Code Civ. Proc., § 1033.5, subd. (a)(3).) Similarly, section 1033.5(a)(14) expressly allows for "fees for the electronic filing or service of documents through an electronic filing service provider if a court requires or orders electronic filing or service of documents." Given the above, section 1033.5 expressly allows for all costs sought by Defendants. Plaintiff has not carried his burden to establish that the costs were unnecessary or unreasonable. The Motion is DENIED in its entirety.

		Defendants to give notice
11	**Armas vs. Costco Wholesale Corporation** **24-01421908**	Motions for Sanctions Plaintiff ROSALIDA SANCHEZ ARMAS (hereinafter "Plaintiff') will and hereby does move the Court for an order: 1. Imposing monetary sanctions against Defendant COSTOCO WHOLESALE CORPORATION (hereinafter "Defendant") and their attorney of record JULIAN SMITH, ESQ., STEPHEN M. HARPER ESQ. AND McCUNE & HARPER, LLP pursuant to Code of Civil Procedure §128.7, §128.5 and California Rule of Court § 2.30 2. Awarding monetary sanctions in the amount of $18,350.00 to compensate for the mediation expenses. Motion is DENIED. Here, the bad acts MP complains about are: · Filing a Case Management Statement representing to the Court that they were interested in mediation and would participate in alternative dispute resolution. · Signing a Joint Stipulation to Continue Trial Misrepresenting to the Court the Basis for the Trial Continuance · Two business days prior to mediation notifying Plaintiff's counsel that Defendant would not be making an offer at the mediation. (See Declaration of Attorney Anastasia Gkogka.) However, none of the above alleged conduct supports sanctions pursuant to CCP§§128.5 or 128.7, or CRC 2.30.